



File No.: EXP202304554

RESOLUTION OF TERMINATION OF THE PROCEDURE BY VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On January 29, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the ASSOCIATION OF COMPANIES OF PERSONAL PROTECTIVE EQUIPMENT (ASEPAL) (hereinafter, the defendant), through the Agreement that is transcribed:

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File No.: EXP202304554

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: Mr. A.A.A. and Mr. B.B.B. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on March 14, 2023. The complaint is directed against the ASSOCIATION OF COMPANIES OF PERSONAL PROTECTIVE EQUIPMENT (ASEPAL) with NIF G79277950 (hereinafter, the defendant). The reasons for the complaint are as follows: The claimant states that on March 15, 2022, they attended the General Assembly of the defendant Association without being informed in the call or during the meeting that the meeting would be recorded, depriving the participants of this information and the possibility of giving consent. They indicate that on May 11, 2022, they requested access to the content of the recordings made during the aforementioned meeting, which was denied. They provide a copy of the call and minutes of the assembly, the request for access to the recordings made to the defendant, and the response received.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on April 11, 2023, the complaint was forwarded to the defendant/ALIAS, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations. The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on April 22, 2023, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, a copy was sent by postal mail for informational purposes, which was duly notified on May 17, 2023. In this notification, they were reminded of their obligation to communicate electronically with the Administration, and they were informed of the means of access to such notifications, reiterating that, henceforth, they would be notified exclusively by electronic means.

THIRD: On June 14, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: On July 31, 2023, a document from the defendant was received at the AEPD, containing allegations from the defendant and evidence, stating:

That on March 15, 2022, the first Ordinary General Assembly took place, with attendees able to attend either in person or online; at the beginning of the session, it was verbally communicated to the attendees that the assembly would be recorded, and additionally, online attendees received a message on their computer screen informing them of the recording of the meeting with the specific message "The recording has started. This meeting is being recorded. By joining, you consent to being recorded."

That the GDPR in its Article 6.1.f) considers the processing of personal data lawful as long as it is necessary for the satisfaction of the legitimate interests pursued by the data controller, and Article

13.1.d) of the GDPR establishes what information must be provided, without the claimant ever being denied access to any personal data, only the transfer of the video of the recording has been denied. That Article 15 of the GDPR speaks of the right of access of the data subject, having this right to obtain different information from the data controller, and among this different information to which it refers, they have only been able to request the purposes of the processing, purposes that were notified to them when they requested in the complaint dated May 11, 2022, the recording of the assembly held. That the associates will always be subject to what is established in the Statutes, applicable State laws, and the Internal Regulations as stated in Article 1.3 of the Association's Statutes.

That necessary measures have been established to comply with all the requirements demanded by current data protection regulations.

That they consider that there has been no infringement of Article 13 of the GDPR nor of Article 15 of the GDPR as indicated in the admission agreement for the reasons expressed in these allegations and, subsidiarily, in case it is considered that there is an infringement, they request that the sanction to be imposed be mitigated according to the criteria established in the

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Article 83.1 and 83.2 of the GDPR adhering to proportionality and having a deterrent character.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The reported facts materialize in the calling of an Ordinary Assembly by the respondent without the warning that it would be subject to recording and without the possibility for participants to refuse to give their consent, which could violate the regulations on the protection of personal data.

Article 58 of the GDPR, Powers, states:

"2. Each supervisory authority shall have all of the following corrective powers:

(...)

d) to order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time;

(...)

i) to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case;

(...)"

III

Article 6.1 of the GDPR establishes the circumstances under which the processing of personal data is considered lawful:

"1. Processing shall be lawful only if at least one of the following applies:

a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;

b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;

c) processing is necessary for compliance with a legal obligation to which the controller is subject;

d) processing is necessary in order to protect the vital interests of the data subject or of another natural person.

e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular where the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.”

Furthermore, Recital 40 of the aforementioned GDPR states that “For processing to be lawful, personal data must be processed with the consent of the data subject or on another legitimate basis laid down by law, whether in this Regulation or under other Union or Member State law to which this Regulation applies, including the necessity of complying with a legal obligation to which the controller is subject or the necessity of performing a contract to which the data subject is party or for taking steps at the request of the data subject prior to entering into a contract.”

On the other hand, Article 4 of the GDPR, Definitions, in its paragraphs 1, 2, and 11, states that:

“1) ‘personal data’: any information relating to an identified or identifiable natural person (‘the data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

“2) ‘processing’: any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction;

“11) ‘consent of the data subject’: any freely given, specific, informed, and unambiguous indication of the data subject’s wishes by which he or she, by a statement or by a clear affirmative action, signifies agreement to the processing of personal data relating to him or her;”

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a statement or a clear affirmative action, the processing of personal data concerning him/her.”

IV

The infringement attributed to the defendant is classified under Article 83.5 a) of the GDPR, which considers that the infringement of “the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9” is subject to penalties, according to paragraph 5 of the aforementioned Article 83 of the said Regulation, “with administrative fines of up to €20,000,000 or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total global annual turnover of the previous financial year, opting for the higher amount.”

The LOPDGDD in its Article 71, Infringements, states that: “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

And in its Article 72, it considers for the purposes of prescription that they are: “Infringements considered very serious:

1. According to what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and will prescribe after three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

b) The processing of personal data without any of the conditions for lawful processing established in

Article 6 of Regulation (EU) 2016/679 being met.

(...)"

V

The processing of personal data requires the existence of a legal basis that legitimizes it.

In accordance with Article 6.1 of the GDPR, in addition to consent, there are other possible bases that legitimize the processing of data without the need for the authorization of its owner, in particular, when it is necessary for the execution of a contract in which the affected party is a part or for the application, at their request, of pre-contractual measures, or when it is necessary for the satisfaction of legitimate interests pursued by the data controller or by a third party, provided that those interests do not override the interests or fundamental rights and freedoms of the affected party requiring the protection of such data. Processing is also considered lawful when it is necessary for compliance with a legal obligation applicable to the data controller, to protect vital interests of the affected party or another natural person, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller.

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The defendant, in their response to the information request, refers to two legal bases that would apply to the processing carried out; they state that: "the online attendees received a message on their computer screen informing them of the recording of the meeting specifically with the following message: 'The recording has started. This meeting is being recorded. By joining, you give your consent to be recorded' and therefore 'the members who decided to connect online gave their express consent by accepting their participation in the meeting.'"

And secondly, they argue "That the GDPR in its Article 6.1.f) gives the green light considering the processing of personal data lawful as long as it is necessary for the satisfaction of the legitimate interests pursued by the data controller. That is to say, in any case, it is completely lawful to record an assembly based on legitimate interest."

However, regarding the alleged consent, it does not align with the definition provided by the GDPR: "... any manifestation of will that is free, specific, informed, and unambiguous by which the data subject agrees, either by means of a statement or a clear affirmative action, to the processing of personal data concerning him/her."

And as for legitimate interest, the aforementioned Article 6.1.f) requires an assessment and weighing of interests that has not been carried out, identifying the rights and freedoms that may be affected, their reasonable expectations, repercussions, etc., comparing them with the expected benefits, and, moreover, the purpose of the recording as stated by the defendant is "to facilitate and aid the transcriptions of what occurred in the minutes that will subsequently be sent to all members," "data processing is being carried out solely for the purpose of recording in the minutes everything discussed in the assemblies. The information shared in the assembly is not collected for illicit use of the content. The only utility of the recording is the support it provides to ASEPAL when drafting the minutes, so it is not collected for the purpose of disseminating that gathered information. The recording is merely a working tool..."

Well, it is also noted that none of these aspects have been communicated to the interested parties. Therefore, it is considered that the processing carried out violates the principle of lawfulness enshrined in Article 6.1 of the GDPR, classified under Article 83.5 a) of the GDPR.

VI

Secondly, the infringement of Article 13 of the GDPR is attributed to the defendant, which establishes: "1. When personal data concerning a data subject is obtained, the data controller shall provide the data subject with all the information indicated below at the time the data is obtained:

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- a) the identity and contact details of the data controller and, where applicable, of their representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) where the processing is based on Article 6(1)(f), the legitimate interests of the data controller or a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the data controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, a reference to the appropriate safeguards and the means to obtain a copy of these or the fact that they have been provided.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time when the personal data are obtained, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the data controller access to personal data concerning the data subject, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;
- c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and has been informed of the possible consequences of not providing such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the data controller intends to process personal data for a purpose other than that for which they were collected, they shall provide the data subject, prior to that further processing, with information on that other purpose and any other relevant information in accordance with paragraph 2.

4. The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.

This provision, in addition to determining in its paragraphs 2 and 3 the information that the data controller must provide, specifies that this information must be provided at the time of data collection. However, the provision of Article 13, paragraphs 1 and 2, must be related to Article 13.4, which exempts from the obligation referred to in both provisions "when and to the extent that the data subject already has the information."

The recitals of the GDPR reiterate the same idea. Thus, Recital 61 states that "Data subjects should be provided with information on the processing of their personal data at the time when it is collected

from them or, if it is obtained from another source, within a reasonable period, depending on the circumstances of the case (...)" And Recital 62 states that "However, it is not necessary to impose the obligation to provide information when the data subject already has the information, (...)."

In any case, it must be taken into account that according to Recital 60, it is the responsibility of the controller to "provide the data subject with any supplementary information necessary to ensure fair and transparent processing, taking into account the specific circumstances and context in which the personal data are processed."

VII

The infringement of Article 13 of the GDPR is classified in Article 83.5(b) of the GDPR, which states: "Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, whichever is higher:

(...)

b) the rights of data subjects under Articles 12 to 22; (...)"

(...)

For the purposes of prescription, the LOPDGDD classifies this conduct in Article 72.1(h) as a very serious infringement and sets a prescription period of three years for it. The provision states:

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law."

(...)

VIII

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In the present case, the claimant indicates that neither in the notice received with the agenda nor in the rest of the information that was sent to them prior to its holding was it informed that the Assembly was going to be recorded, with the responding party subsequently refusing to provide a copy of the requested recording.

The principles set forth in Article 5 of the GDPR, relating to fair and transparent processing, require that the data subject be informed of the existence of the processing operation and its purposes. The data controller must provide the data subject with any additional information necessary to ensure fair and transparent processing, taking into account the specific circumstances and context in which personal data is processed.

Therefore, data subjects must be provided with information about the processing of their personal data at the time it is obtained from them or, if obtained from another source, within a reasonable timeframe, depending on the circumstances of the case. When personal data relating to a data subject is obtained from that subject, the data controller must provide them with all the information regarding the processing of their data as indicated in Article 13 of the GDPR.

IX

In order to establish the administrative fine that should be imposed, the provisions contained in Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation referred to in paragraphs 4, 5, and 6 is, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and detriment they have suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and detriment suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringements committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

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- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58(2) have been previously ordered against the controller or processor in relation to the same matter, compliance with such measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42; and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as financial benefits obtained or losses avoided, directly or indirectly, through the infringement.

In relation to point k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, "Sanctions and corrective measures," establishes that:

"2. According to the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The ongoing nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party."

- In accordance with the transcribed provisions, and without prejudice to the outcome of the instruction of the procedure, for the purpose of setting the amount of the fine to be imposed in this case for the infringement of Article 6.1 of the GDPR, classified in Article 83.5.a) of the GDPR for which the respondent is responsible, an initial assessment considers it appropriate to establish a fine of €5,000 (five thousand euros).

- In accordance with the transcribed provisions, and without prejudice to the outcome of the instruction of the procedure, for the purpose of setting the amount of the fine to be imposed in this case for the infringement of Article 13 of the GDPR, classified in Article 83.5.a) of the GDPR for which the respondent is responsible, an initial assessment considers it appropriate to establish a fine of €5,000

(five thousand euros).

X

If the infringement is confirmed, it could be agreed to impose on the controller the adoption of appropriate measures to adjust their actions to the aforementioned regulations in this act, in accordance with the provisions of the cited Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is noted that failure to comply with a possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the opening of further administrative sanctioning proceedings.

Therefore, in light of the above,

By the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against the ASSOCIATION OF COMPANIES OF PERSONAL PROTECTIVE EQUIPMENT (ASEPAL), with NIF G79277950, for the alleged infringement of Articles 6.1 and 13 of the GDPR, classified in Articles 83.5.a) and 83.5.b) of the GDPR.

SECOND: TO APPOINT C.C.C. as Instructor and D.D.D. as Secretary, indicating that either of them may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), and Article 127 letter b) of the RLOPD, the sanction that may correspond for the infringements of Articles 6.1 and 13 of the GDPR would be €5,000 (five thousand euros) each, without prejudice to the outcome of the instruction.

FIFTH: TO NOTIFY this agreement to the ASSOCIATION OF COMPANIES OF PERSONAL PROTECTIVE EQUIPMENT (ASEPAL), with NIF G79277950, granting them a hearing period of ten working days to submit any allegations and present any evidence they deem appropriate. In their written allegations, they must provide their NIF and the procedure number that appears in the heading of this document.

If no allegations are made within the stipulated period, this agreement may be considered a proposal for resolution, as provided in Article

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64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

You are also informed that, in accordance with the provisions of Article 85.1 LPACAP, you may acknowledge your responsibility within the period granted for submitting allegations to this initiation agreement, which will entail a reduction of 20% of the sanction that may be imposed in this procedure, equivalent in this case to 2,000 euros. With the application of this reduction, the total sanction would be established at 8,000 euros, concluding the procedure with the imposition of this sanction.

Similarly, you may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, in accordance with the provisions of Article 85.2 LPACAP, which will imply a reduction of 20% of the amount, equivalent in this case to 2,000 euros. With the application of this reduction, the total sanction would be established at 8,000 euros, and its payment will imply the termination of the

procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations to the initiation of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to be applied, the total amount of the sanction would be established at 6,000 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

In the event that you choose to proceed with the voluntary payment of either of the amounts indicated above (8,000 euros or 6,000 euros), in accordance with the provisions of Article 85.2 referred to, we inform you that you must make it effective by depositing it into the restricted account No. ES00 0000 0000 000000 0000 0000 opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering. You must also send the proof of payment to the General Sub-Directorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement or, where appropriate, from the draft initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

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In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be made exclusively electronically, through the Single Authorized Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address to this Agency to receive the notice of availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid. Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

Mar España Martí
Director of the Spanish Agency for Data Protection

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SECOND: On February 8, 2024, the respondent has proceeded to pay the sanction in the amount of 6,000 euros using both reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations to the initiation of the procedure, entails the renunciation of any action or administrative appeal against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

FOURTH: In the previously transcribed Initiation Agreement, it was indicated that, if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the cited Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...”.

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the Initiation Agreement is appropriate.

LEGAL GROUNDS

I

Competence

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In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when a pecuniary sanction can be imposed alongside a non-pecuniary sanction but the latter has been justified as inappropriate, voluntary payment by the alleged offender, at any time prior to the resolution, will imply the termination of the procedure, except with regard to the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure, and their effectiveness shall be conditional upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202304554, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO ORDER the ASSOCIATION OF COMPANIES OF PERSONAL PROTECTIVE EQUIPMENT (ASEPAL) to notify the Agency of the adoption of the measures described in the legal grounds of the Initiation Agreement transcribed in this resolution within 6 months from the date this resolution becomes final and enforceable.

THIRD: TO NOTIFY this resolution to the ASSOCIATION OF COMPANIES OF PERSONAL PROTECTIVE EQUIPMENT (ASEPAL).

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative

Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1259-16012024

Mar España Martí

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